*THE REPUBLIC OF ICENIA*

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# Criminal Justice Act

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This document, last compiled by **Creepily**, includes all legislation enacted and amended up to and including the **Criminal Justice Act** passed on **23rd January 2026**.

# Criminal Justice Act

## Section 1: Purpose and Authority

1. This Act is established under Article V of the Constitution to define the laws by which the Judiciary shall administer justice.
2. This Act defines criminal conduct and establishes the "reasonable and proportionate" sentencing guidelines required by Article V (i) of the Constitution.
3. Where this Act defines a specific crime or sentence, it supersedes vague definitions found in the *Safe Icenia Act*. The *Safe Icenia Act* shall remain in effect as a guide for police enforcement and immediate containment (arrests), while this Act dictates judicial outcomes (trials and sentencing).
4. Nothing in this Act shall be construed to limit the authority of the Judiciary to enforce penalties, remedies, or sentences explicitly provided for in other Statutes or Acts of Icenia.

## Section 2: General Provisions

1. To secure a conviction, the prosecution must prove every element of the offense **beyond a reasonable doubt**.
2. Unless otherwise specified, a crime requires the **intent (Mens Rea)** to commit the act. Acts resulting in damage or loss that lack criminal intent are **Civil Matters** and shall be adjudicated under the Contract Law Act, Civil Equity and Integrity Act, or other relevant statutes.
3. An attempt to commit a crime, where a substantial step was taken towards its completion, carries the same classification as the crime itself, though the Judge may exercise leniency in sentencing.
4. This Act applies to:
    a. Offenses committed within the sovereign territory of the Republic of Icenia (including States and Territories);
    b. Offenses committed by Icenian Citizens, regardless of location, against the Republic or its Citizens; and
    c. Property located within Icenia that was obtained through theft.
        i. Property located within Icenia that was obtained through theft **abroad** is subject to civil seizure and repatriation. However, criminal prosecution for theft occurring outside Icenian jurisdiction shall only occur if the act involved an Icenian Citizen or if prosecution is explicitly requested by treaty.

## Section 3: Sentencing and Classification of Offenses

To ensure sentences are "reasonable and proportionate" (Constitution Art. V), offenses are categorized as follows. These maximums serve as a ceiling; Judges retain discretion to impose lesser sentences based on mitigating factors.

1. **Class A Offense (High Crimes)**
    - *Maximum Sentence:* Permanent Pearl time, Exile, Revocation of Citizenship, and/or Total Asset Seizure.
    - *Statute of Limitations:* None.
2. **Class B Offense (Felonies)**
    - *Maximum Sentence:* Pearl time not exceeding **four (4) weeks**, and/or fines based on verified assets.
        i. Hidden Assets: If a fine is imposed but assets cannot be verified or seized, the Court may impose a fixed debt to the State. Failure to service this debt may result in extended Pearl Time at a fixed conversion rate (e.g., 1 day = 10 Diamonds).
    - *Statute of Limitations:* 1 Year.
3. **Class C Offense (Misdemeanors)**
    - *Maximum Sentence:* Pearl time not exceeding **one (1) week**, and/or Fines/Restitution.
    - *Statute of Limitations:* 6 Months.
4. **Class D Offense (Infractions)**
    - *Maximum Sentence:* Community Service, or Fines/Restitution.
    - Enforcement: Failure to comply with a Class D sentence within a reasonable timeframe constitutes Contempt of Court, which is a Class C Offense (up to 1 week Pearl Time).
    - *Statute of Limitations:* 3 Months.
5. **Hard Labor and Parole (Nether Mining):**
   The Court may, at its discretion, offer Hard Labor as an alternative to, or a reduction of, a standard Pearl Time sentence.
    a. **Exchange Rate:** The Judge shall define a specific quota of Nether resources (e.g., Ancient Debris, Bastion materials) that the prisoner must harvest and deliver to the Government.
    b. **Sentence Reduction:** Upon delivery of the quota, the prisoner's remaining Pearl Time shall be commuted (cancelled) or reduced.

c. **Constitutionality:** In accordance with Article III(5) of the Constitution, such labor is a voluntary alternative to serving the full duration of confinement and does not constitute involuntary servitude.

d. **Exclusion:** Hard Labor is generally not available for Class A offenses unless explicitly granted by the President or Secretary of Defense as part of a rehabilitation program.

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## Section 4: Offences against Property

**Article 4.1: Theft (Larceny)**

1. **Definition:** A person commits Theft if they unlawfully take, exercise control over, or transfer Property owned by another with the intent to deprive the owner of said Property.

2. **Classification:**

    a. **Petty Theft (Class C Offense)**: Theft of property valued below 64 Diamonds (or market equivalent).

    b. **Grand Larceny (Class B Offense):** Theft of property valued at or above 64 Diamonds, or theft involving the breaking of bunkers, vaults, bastions or reinforced obsidian.

3. **Restitution:** In addition to any penal sentence, the offender must return the specific stolen items to the owner.

    a. **Standard Damages:** If the items cannot be returned (e.g., lost, despawned, or consumed), the offender must pay the **Fair Market Value** of the items plus **Consequential Damages** (compensation for lost profits or costs incurred by the victim during the deprivation).

    b. **Treble Damages:** If the Court finds by clear and convincing evidence that the theft was malicious or done with intent to permanently deprive, the Court may order the offender to pay **three times (3x)** the actual damages as a punitive fine.

    c. **Insolvency:** If the offender cannot pay the damages listed in Clause 3, the Court may convert the debt into additional Pearl Time or Community Labor at a fixed rate (e.g., 1 day pearl = 10 diamonds of debt).

**Article 4.2: Destruction of Property (Griefing)**

1. **Definition:** A person commits Destruction of Property if they unauthorizedly place, break, modify, or obfuscate blocks, entities, or reinforced structures owned by another or by the State.

2. **Classification:**

a. **Minor Damage (Class D Offense):**

   i. Aesthetic damage, breaking crops, or breaking unreinforced blocks (fewer than 10 blocks).

**b. Moderate Destruction (Class C Offense):**

   i. Standard griefing (e.g., breaking windows, destroying furniture, breaking typical house infrastructure) or damage costing less than 64 Diamonds to repair.

**c. Grand Destruction (Class B Offense):**

   i. The placing of reinforced blocks or fluids (e.g., "Obbybombing" or "Lavacasting,") intended to deny access or require significant labor to remove.

   ii. The systematic destruction of critical systems, including but not limited to: rail networks, ice roads, factories, large-scale farms, or military bastions.

   iii. Any destruction where the cost of labor and materials for restoration exceeds 64 Diamonds.

3. **Restitution:** The offender must restore the property to its original state or pay the labor/material costs for such restoration.

**Article 4.3: Possession of Stolen Goods**

1. **Definition:** A person commits this offense if they possess Property that has been obtained through Theft.

   a. A person commits Criminal Possession (Fencing) if they possess stolen goods and knew or reasonably should have known the goods were stolen.

   b. This specific offense is exempt from Section 2.2 which designates the requirement for malicious intent to incriminate; **"Recklessness"** or **"Gross Negligence"** is sufficient for conviction.

   c. Evidence that a person was “Grossly Neglectful” or "should have known" includes:

      i. **Price:**
      Buying items significantly below market value.

      ii. **Third-Party Identity:**
      Buying items with custom Names, Lore, or Signatures that explicitly identify ownership by another active player or group, where the seller cannot provide a plausible explanation of legitimate acquisition.

      iii. **Administrative Nature:**
      Buying items that clearly imply specific access rights or government authority.

2. **Classification: Class C Offense.**

3. **Good Faith Buyer Exception:**

    a. If a person acquired stolen goods in a lawful trade and the Court determines they were genuinely unaware of the goods' stolen nature, they are **not criminally liable**.

    b. A Good Faith Buyer must surrender **Unique Property** (items with lore, artifacts, signatures, or uncraftable items) to the Lawful Owner upon presentation of proof.

    c. The Court shall order the original Thief to pay to the Good Faith Buyer:

        i. **Restitution** equal to the value paid for the goods; AND

        ii. **Incidental Damages** (a strict fine paid by the Thief) to compensate for the inconvenience and loss of the transaction, not exceeding 20% of the transaction value.

    d. **Consumables and Fungibles Exception:**

        i. If a Good Faith Buyer has already consumed the goods (e.g., food, potions, XP) or inextricably mixed them with their own supplies (e.g., construction materials, currency, ores) prior to being notified of the theft, they are not required to provide restitution or surrender the items.

        ii. In such cases, the Lawful Owner must seek compensation solely from the Thief.

**4. Commercial Protection (Safe Harbor):**
The presumption of lawful trade applies in the following circumstances. In these cases, the burden of proof lies entirely on the Prosecution to prove that the buyer had specific knowledge that the items were stolen:

    a. **Generic Goods:** The purchase of generic goods (e.g., unnamed blocks, resources, or standard tools) at or near Fair Market Value.

    b. **Direct Purchase:** The purchase of Unique Property where the seller is the **Creator or Author** named on the item (e.g., a new player selling their own spawn book).

    c. **War Spoils:** The purchase of items that were seized from raiders, hostile combatants and Declared Enemies of Icenia, during the course of self-defense or sanctioned military operations.

    d. **Lawful Transfer:** The purchase of items obtained through any valid legal process transferring ownership of abandoned, derelict or seized property, whether defined by Federal, State, or Municipal Law.

e. **Cultural Decoupling:** The purchase of Unique Property belonging to an individual largely considered as a historical figure, such that the item is traded as a cultural artifact rather than personal property.

f. **Banned Players:** The item is signed by or named after a player who is Permanently Banned from playing by the CivMC Admins.

**Article 4.4: Fraud**

1. **Definition:** A person commits Fraud if they knowingly make false representations of fact, authority, or intent to induce another person to surrender Property, perform Labor, or grant Access, thereby securing a benefit to themselves or a third party. This includes, but is not limited to:

    a. **Commercial Fraud**: "Scamming" or failing to uphold the agreed terms of a trade.

    b. **Theft of Services**: Inducing players to build, terraform, or farm under false pretenses.

    c. **Impersonation**: Falsely claiming to represent a government or organization to secure gain.

2. **Classification: Class C Offense**.

3. **Civil Liability Distinction**: Acquittal of criminal Fraud does not preclude civil liabilities for Unjust Enrichment or Misrepresentation under civil statutes.

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## Section 5: Offences against the Person

**Article 5.1: Homicide**

1. **Definition:** The killing of another player.

    a. **Murder:** The killing of another player with **malicious intent.**

        i. If the murder is premeditated (e.g., trap-killing) or repeated (spawn camping), Judges may seek maximum sentencing within class.

    b. **Manslaughter:** The killing of another player through **recklessness** or **negligence**, without malicious intent.

2. **Classification:**

    a. **Murder: Class B Offense**.

        i. **Repeat Offenders:** A third conviction of Murder may be elevated to a **Class A Offense**.

    b. **Manslaughter: Class C Offense**.

3. **Exemptions:**

a. Homicide is not criminal if committed by a member of the Icenian Military or Militia during the execution of lawful orders, including the engagement of individuals designated as "Pearl on Sight" (POS) or "Active Threats" by the Government.

**Article 5.2: Assault**

1. **Definition:** The intentional infliction of damage upon a player without their consent, not resulting in death.
2. **Classification: Class D Offense**.

**Article 5.3: Unlawful Confinement**

1. **Definition:** Possessing the pearl of an Icenian Citizen or Resident without a valid **Governmental Warrant**, **Judicial Sentence**, or active **Self-Defense justification** (e.g., holding a raider's pearl during a raid or if they are marked by the Government as Pearl on Sight is lawful; holding a citizen's pearl because they owe you money is unlawful).
2. **Lawful Authority Exemption:**
   Possession of a pearl is **lawful** and not subject to this Article one of the following conditions is fulfilled:
   a. **Government Designation:** The pearl belongs to an individual designated as "Pearl on Sight" (POS), "Kill on Sight" (KOS), or an "Active Threat" by Icenia.
   b. **Official Duty:** The holder is a member of the Icenian Military acting in their official capacity to transport the pearl to secure government storage.
   c. **State of War:** The pearl belongs to a foreign combatant or enemy of the state during a declared State of War.
   d. **International Obligation:** The pearl is being held, transported, or stored on behalf of a foreign nation or entity in accordance with a Treaty, Alliance, or specific authorization from the Secretary of Defense or President (e.g., hosting allied pearls, extradition transfers, or international bounty fulfillment).
   e. **Transient Passage**: The holder is a foreign national passing through Icenian territory expeditiously, provided the pearl does not belong to an Icenian citizen.
3. **Classification: Class B Offense**.
4. **Mandate:** The pearl must be released immediately upon conviction.
5. **Civil Damages (Reparations):** In addition to criminal sentencing, the offender is liable to pay the victim for the duration of the unlawful confinement:
   a. **Consequential Damages (Lost Income):** If the victim can prove financial loss (e.g., empty shop chests, stalled factory orders) directly caused by their inability to play, the offender must compensate this amount in full.

b. **Statutory Damages (Loss of Gameplay):** Even if no financial loss is proven, the Court shall award a fixed sum per day of confinement (e.g., 5-10 Diamonds per day) to compensate for the victim's loss of time and enjoyment of the server.

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## Section 6: Offences against the Republic

**Article 6.1: Treason**

1. **Definition:** Treason is the highest crime against the Republic and consists solely of:
    - Levying war against Icenia.
    - Adhering to Icenia's enemies, giving them aid and comfort during a State of War.
    - Leaking classified military intelligence (e.g., bunker schematics, active snitch coordinates) to a hostile power.
    - Attempting to overthrow the Government by force.
2. **Classification: Class A Offense**.

**Article 6.2: Bribery (Public Corruption)**

1. **Definition:** Offering, giving, soliciting, or accepting any thing of value, directly or indirectly, with the intent to influence the performance of a specific **Official Action** by an individual holding a public or legal duty (e.g., Government Officials and Magistrates).
    a. An **Official Action** is defined as any decision, action or omission within the scope of a public official's authority, including but not limited to:
        i. Casting a vote on a Senate Bill or Motion;
        ii. Rendering a verdict or sentence in a Court of Law;
        iii. Granting or denying permits, land claims, or government contracts; or
        iv. Neglecting to enforce the law.
2. **Classification:**
    a. **Class C Offense (Standard):** Individual instances of bribery.
    b. **Class B Offense (Aggravated):**
        i. If the offense involves a High Government Official (President, Secretary, Senator, Magistrate); or
        ii. If the value of the bribe exceeds 64 Diamonds; or

iii. If the bribery is Systematic (involving multiple officials or repeated acts).

3. **Mitigation for Disclosure:** The Court **may** grant reduced sentencing or total immunity to a party who voluntarily reports the bribery prior to any government investigation, provided they:

    a. forfeit all benefits received; AND

    b. were not the primary instigator or organizer of the bribery scheme.

**Article 6.3: Electoral Corruption**

1. **Definition:** Offering, giving, soliciting, or accepting anything of value with the intent to influence the casting, withholding, or direction of a vote or candidacy in any **Public Election** (e.g., Senate, State, or Referendum).

2. **Prohibited Conduct:**

    a. **Vote Buying:** Paying or accepting payment, benefits or access in exchange for voting for a specific candidate or option.

    b. **Vote Verification:** Requiring a player to provide proof of their vote as a condition for payment, benefits or access.

    c. **Intimidation:** Using force or threats to coerce voting behavior.

3. **Political Exception:** This Article does not apply to legitimate Campaign Promises regarding policy or general public benefit (e.g., "If elected, I will lower taxes" or "I will build a public road").

4. **Classification:**

    a. **Class C Offense (Standard):** Individual instances of electoral corruption.

    b. **Class B Offense (Aggravated):**

        i. **Systematic Corruption:** Organizing a scheme to purchase multiple votes (3 or more); or

        ii. **Electoral Fraud:** Attempting to alter the outcome of an election through mass intimidation or large-scale expenditure.

5. **Mitigation for Disclosure:** The Court **may** grant reduced sentencing or total immunity to a party who voluntarily reports the corruption prior to any government investigation, provided they:

    a. forfeit all benefits received; AND

    b. were not the primary instigator or organizer of the bribery scheme.

**Article 6.4: Obstruction of Justice**

1. **Definition:** A person commits Obstruction if they impede the administration of law or government function by:
    a. **Harboring a Fugitive:** Hiding or assisting a player actively wanted by the State to prevent their arrest;
    b. **Tampering with Evidence:** Concealing, destroying, or altering evidence relevant to a criminal investigation;
    c. **Resisting Enforcement:** Refusing a lawful order from a Government Official to vacate a crime scene or restricted area; or
    d. **Perjury:** Knowingly making a false statement of material fact while under oath or providing official testimony.
2. **Classification: Class C Offense**.

**Article 6.5: Contempt of Court**

1. **Definition:** A person commits Contempt if they willfully disrespect or disobey the authority of a Court. This includes:
    a. **Disobedience:** Failing to comply with a lawful Court Order, Injunction (compelled to act or not to act), or Subpoena (compelled to provide evidence);
    b. **Failure to Restitute:** Failing to complete a sentence (such as Community Service or Fines) derived from a Class D infraction; or
    c. **Disruption:** Conduct that substantially disrupts the proceedings of a trial (e.g., spamming, interrupting the Judge, refusing to yield the floor).
2. **Classification: Class C Offense**.

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# Section 7: Defenses

**Article 7.1: Self-Defense**

It is an affirmative defense to Murder or Assault if the force used was necessary to protect oneself, another person, or Property from imminent unlawful force, theft, or trespass. The force used must be proportional to the threat.

**Article 7.2: Entrapment**

A person is not guilty of a crime if they were induced or tricked into committing it by a Government Official or property owner for the sole purpose of prosecution (e.g., being invited onto a plot and then immediately charged with Trespass).

**Article 7.3: Consent**

Conduct that would otherwise constitute Assault or Murder is not criminal if it occurs during a mutual duel, arena combat, or consensual PvP event.

**Article 7.4: Execution of Public Duty**

Conduct that would otherwise constitute an offense (such as Assault and Homicide) is justified and not criminal if **all the following** is fulfilled:

1. The actor was a Government Official, Military Personnel, or Militia Member.
2. The act was performed in the reasonable execution of their official duties, orders, or the enforcement of Icenian Law.
3. The act was performed in **Good Faith** and was **Proportional** to the threat or crime being investigated.

# Section 8: Enactment

1. This Act applies to all crimes committed after its passage.
2. Any section of the *Safe Icenia Act* regarding sentencing that conflicts with this Act is hereby repealed; the *Safe Icenia Act* shall henceforth serve primarily as a directive for law enforcement engagement and containment.